

Shivam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · Writ-C No. 37156 of 2022 · **Writ disposed without merits; Executive Engineer directed to look into and redress the pending 15 HP connection grievance within two weeks.**

HEADNOTE

A consumer sought mandamus for a pending 15 HP new connection for a Ganna Perai Power Kolhu. The Division Bench treated the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 as a self-contained regime, expressed no opinion on merits, and with the parties' consent disposed of the writ by directing the Executive Engineer, PVVNL Division-1, Dhampur, to look into the grievance and redress it within two weeks of production of a certified copy.

FACTUAL SUMMARY

Shivam, a resident of Village Davkhedi, District Bijnor, applied online on 15 November 2022 to the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Division-1, Dhampur, for a 15 HP connection to operate a Ganna Perai Power Kolhu on Khasra Plot Nos. 84 and 71 of Village Talampur Kumrara, Tehsil Dhampur. He paid an online application fee of Rs. 118. The application remained pending and no connection was released. He sought a mandamus commanding the licensee to provide the 15 HP supply.

HOLDING-UNITS

INTERPLAY · UP-2005

pending new connection — writ disposed for time-bound administrative redress

HOLDING

Where an online application for a new 15 HP connection remains pending with the distribution licensee, the High Court will not decide entitlement in writ jurisdiction. Treating the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 as a self-contained regime, and with the parties' consent, the writ is disposed of without opinion on merits and the Executive Engineer is directed to look into the grievance and redress it within two weeks of production of a certified copy. ¶ 1

FLAG Order cites the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 generally; no numbered clause.

PRINCIPLE TAGS

pending-new-connection-directed-to-ee-for-time-bound-redress

The 15 HP Ganna Perai Kolhu application of 15.11.2022 was still pending; the Bench refused a merits mandamus and directed the EE, PVVNL Division-1, Dhampur, to look into and redress the grievance within two weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON MERITS TO THE 15 HP CONNECTION FOR THE GANNA PERAI POWER KOLHU

Court expressly declined any opinion on the merits of the issue. ¶ 1